

misuse of the discovery process. Cal. Civ. Pro. § 2023.030(a). Second, “[t]he amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” *Cornerstone Realty Advisors, LLC*, *supra*, at 791, citing Cal. Civ. Pro. § 2023.030(a).

Plaintiff’s request for sanctions is granted, in part. Counsel’s assertions indicate she spent six (6) hours drafting the motions, a reply and anticipated time appearing at the hearing of the motions, as well as \$60.00 in costs forming the basis for a request for sanctions in the amount of \$2,310.00. Porat Decl., ¶ 16 and Reply, Pg. 4, ll. 1-10. A party requesting sanctions for reasonable expenses that were incurred as a result of discovery abuse must already be liable for those expenses before the court can award the costs as sanctions. See *Tucker v. Pacific Bell Mobile Servs.*, 186 Cal. App. 4th 1548 (2010) (anticipated costs for future deposition could not be included in award of sanctions). While Defendant’s counsel has set forth various circumstances regarding meet and confer attempts and confusion justifying the delay in serving responses, it appears the filing of the instant motion prompted Defendant to serve responses prior to the motion hearing. Plaintiff also notes verifications have not yet been received which is “tantamount to no response at all” (See, *Appleton*, *supra* 206 Cal.App.3d at 636), indicating a court order is appropriate to ensure compliance. However, appearance at hearing has not yet occurred and may not be necessary. Therefore, the Court grants sanctions for the amount of time and costs actually incurred. At the indicated billing rate of \$375.00 per hour which the Court finds reasonable and justified and a \$60.00 filing fee, as well as considering the requests were filed separate as opposed to as one motion and there is some overlap in the pleadings, Defendant is sanctioned the total sum of \$1,935.00.

Request for Production of Documents

Plaintiff did not serve a reply to Defendant’s opposition, and the Reply on file states, “[t]o date, no written verified responses have been received to Plaintiff’s *Special Interrogatories, Set One* served September 12, 2025”. Based on the information at hand, it appears Defendant has served verified responses on Plaintiff as of January 8, 2026. Therefore, Plaintiff’s motion to compel Defendant’s responses to requests for production of documents, set one, is denied as moot.

9. CU0002314 Craig Dealon Dowell vs. Jose Valentin Galaz Romero et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference set for March 20, 2026 at 9:00 a.m.

10. CU0002345 Jeffrey T. Menasco et al vs. 15794 Alder Creek, LLC et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. Absent good cause being shown,

the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference set for March 20, 2026 at 9:00 a.m.

11. CU0002348

Cathleen Garritson vs. Kathryn Hawkins et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference set for March 20, 2026 at 9:00 a.m.